



CHAPTER 32.

An Act to authorise the giving of further financial assistance to the Herring Industry Board and to herring fishermen and persons desiring to engage in the herring industry, to amend the Herring Industry Acts, 1935 and 1938, and for purposes connected with the matters aforesaid. [3rd August 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For the purpose of assisting herring fishermen and persons desiring to engage in the herring industry, including in particular persons who have previously been engaged in that industry and persons who have served whole-time in the armed forces of the Crown or the mercantile marine, in the provision of boats and equipment which could not be provided without such assistance, the Ministers may with the approval of the Treasury make arrangements for the payment, during the period of five years beginning with the date of the passing of this Act, of grants to such fishermen and persons for the said purpose, and may on the recommendation of the Herring Industry Board (hereafter in this Act referred to as "the Board") make out of moneys provided by Parliament such grants as may be provided for by the arrangements: Grants for the provision of boats and equipment.

Provided that—

- (a) a grant made under this section in respect of any boat or equipment shall not exceed one-third of the total cost thereof; and
- (b) the aggregate of the grants made under this section shall not exceed eight hundred and twenty thousand pounds.

Additional powers to be conferred on the Herring Industry Board by scheme.
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Geo. 5. c. 9.

2.—(1) There shall be included among the powers that may be conferred on the Board by a scheme made under section two of the Herring Industry Act, 1935, the following powers—

- (a) power to purchase boats and equipment for the purpose of being chartered or hired to persons desiring to engage in the herring industry, including in particular persons who have previously been engaged in that industry and persons who have served whole-time in the armed forces of the Crown or the mercantile marine, and to sell any such boats and equipment or shares therein to persons to whom they have previously been chartered or hired and to dispose of any boats and equipment or shares therein no longer required for the purpose of being chartered, hired or sold as aforesaid ;
- (b) power to arrange for the refrigeration and processing, whether by persons engaged in the industry or by the Board, of such proportion of herring catches as the Board consider expedient with a view to providing supplies of herring of good quality throughout the year and meeting temporary and seasonal conditions detrimental to the industry ;
- (c) power to regulate, by means of rules, the conditions subject to which herring may be refrigerated and the standard of quality of the herring before and after refrigeration ; and
- (d) power to levy contributions, in respect of any port or area, out of the proceeds of first sales of fresh herring, that is to say, the first completed sales wholesale after the herring have been caught, and to make payments to herring fishermen in that port or area in order to obviate so far as possible undue differences in their earnings.

(2) A scheme conferring the powers specified in paragraph (d) of the last foregoing subsection shall provide that the powers shall not be exercised in respect of any port or area unless it appears to the Board that there exists among herring fishermen in that port or area a prevailing opinion in favour of the exercise of the said powers.

(3) A scheme conferring the said powers shall secure so far as practicable that the contributions levied in respect of any port or area are sufficient to meet payments due to herring fishermen in that port or area under the scheme and, if at any time the contributions are insufficient to meet those payments, the scheme shall require the Board to make such adjustments in the rate of contributions or payments as may be necessary to make good the deficiency.

3.—(1) There shall be paid out of moneys provided by Parliament in respect of the general administrative expenses of the Board (including the expenses of the Herring Industry Advisory Council and of any committee appointed by the Board) approved by the Ministers, being expenses incurred during the period of five years beginning with the date of the passing of this Act, such sums, not exceeding seventy-five thousand pounds, as Parliament may from time to time determine.

Payment of certain expenses of the Board out of moneys provided by Parliament.

(2) There shall be paid out of moneys provided by Parliament, in respect of any expenses incurred by the Board during the said period, and approved by the Ministers, in the exercise of any powers exercisable by the Board for promoting the sale of herring or products thereof, promoting market development, promoting schemes for the revival of winter fisheries, purchasing boats and equipment for the purpose of being chartered or hired, or promoting or carrying out schemes of research or experiment, such sums, not exceeding in the aggregate the amount which with the sums paid in respect of the general administrative expenses of the Board will amount to two hundred and fifty thousand pounds, as Parliament may from time to time determine.

4.—(1) The Ministers may make out of moneys provided by Parliament advances to the Board, on such terms as the Ministers with the approval of the Treasury may prescribe, towards expenses incurred or to be incurred by the Board in the exercise of any powers exercisable by them under a scheme made under section two of the Herring Industry Act, 1935, for—

Payment of advances to Board.

- (a) the making of loans for the provision, reconditioning and equipment of boats ;
- (b) the purchase of boats and equipment ;
- (c) the making of loans to any society or organisation formed for the purpose of acquiring nets and gear, fuel for boats, or other requisites for herring fishing, or requisites for the curing, kippering or other processing, or the refrigeration, of herring and of selling or hiring any such requisites to the members of the society or organisation ;
- (d) the making of loans in connection with export ;
- (e) the undertaking of operations involving the outlay of working capital :

Provided that—

- (i) the aggregate amount of the advances made under this subsection shall not exceed one million and seven hundred thousand pounds ;
- (ii) moneys provided by Parliament which are to be advanced to the Board for the purposes referred to in paragraphs (d) and (e) of this subsection shall be paid into a fund (to be

called the Herring Marketing Fund) which shall be established in accordance with directions given by the Treasury and shall be under the control and management of the Ministers ;

- (iii) the sums paid into the Herring Marketing Fund under the last foregoing paragraph shall not exceed two hundred thousand pounds in the aggregate ;
- (iv) no advances shall be made under this section after the expiration of the period of five years beginning with the date of the passing of this Act.

(2) All sums received by the Ministers by way of interest on an advance made to the Board for the purposes referred to in paragraphs (a), (b) and (c) of the last foregoing subsection, and all sums received by way of repayment of the principal of such an advance, shall be paid into the Exchequer.

(3) All sums received by the Ministers by way of interest on an advance made to the Board for the purposes referred to in paragraphs (d) and (e) of subsection (1) of this section shall be paid into the Exchequer, and all sums received by way of repayment of the principal of such an advance shall either be paid into the Herring Marketing Fund before the expiration of the period of five years beginning with the date of the passing of this Act or, if not paid into that fund before the expiration of the said period, shall be paid into the Exchequer.

(4) If it is shown to the satisfaction of the Ministers and the Treasury that any sum representing the principal of an advance made to the Board for the purposes referred to in subsection (1) of this section or part of such an advance cannot be repaid, the Treasury may direct that the liability of the Board to the Ministers shall be reduced to the extent of that sum.

(5) The Secretary of State concerned with the sea fishing industry in Scotland shall prepare, in such form and manner and at such times as the Treasury may direct, an account of the sums received into and paid out of the Herring Marketing Fund in each financial year.

(6) On or before the thirtieth day of November in each year, the said account prepared under the last foregoing subsection and, in a case where the Treasury have directed under subsection (4) of this section that the liability of the Board to the Ministers shall be reduced, a statement of the reasons for that reduction, shall be transmitted to the Comptroller and Auditor-General who shall examine and certify the account and lay copies thereof, together with his report thereon, before both Houses of Parliament.

(7) As soon as may be after the expiration of the period of five years beginning with the date of the passing of this Act, the Herring Marketing Fund shall be wound up in accordance with directions given by the Treasury and any sums then standing to the credit thereof shall be paid into the Exchequer.

5.—(1) If it appears to the Ministers that, owing to the circumstances prevailing during the said period of five years referred to in section one of this Act and the last two foregoing sections, it has not been possible for the Board and herring fishermen to avail themselves of the financial assistance provided under the said sections to the extent anticipated, they may by order extend the period for a further period not exceeding three years and the said sections shall have effect accordingly. Power to extend period.

(2) An order made under this section shall be laid as soon as may be before Parliament, and if either House of Parliament, within the period of forty days beginning with the day upon which the order is laid before it, resolves that it be annulled, it shall thereupon cease to have effect, without prejudice to the making of a new order.

In reckoning the said period of forty days no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

6. In section seven of the Herring Industry Act, 1935, (which gives the Board power to borrow sums required by them for the exercise of their powers) for the words "one million pounds" there shall be substituted the words "two million and five hundred thousand pounds". Extension of borrowing powers of Board.

7. If it appears to the Board to be practicable and desirable to make provision for the election of members of the Board by persons engaged in the herring industry, the Board shall prepare and submit to the Ministers proposals for the variation of the composition of the Board so as to enable members to be so elected, and thereupon the Ministers shall lay the proposals before Parliament together with a report setting out their views thereon. Provision for election of members of Board.

8. The amendments specified in the second column of the Schedule to this Act, being amendments of a consequential or minor nature, shall be made in the provisions of the Herring Industry Acts, 1935 and 1938, mentioned in the first column of that Schedule. Minor and consequential amendments.

9.—(1) This Act may be cited as the Herring Industry Act, 1944, and shall be construed as one with the Herring Industry Acts, 1935 and 1938, and those Acts and this Act may be cited together as the Herring Industry Acts, 1935 to 1944. Short title, construction and extent.

(2) This Act shall extend to Northern Ireland and the provisions of section fifteen of the Herring Industry Act, 1935, except so far as they relate to the making of an Order in Council extending the provisions of that Act to Northern Ireland, shall apply to this Act as they apply to that Act.

Section 8.

SCHEDULE.*Amendments of the Herring Industry Act, 1935.*

<i>Section amended</i>	<i>Amendment</i>
Section three ...	In paragraph (b) for the word "construction" there shall be substituted the word "provision", and in paragraph (i) after the word "herring" (where it first occurs) there shall be inserted the words "or products of herring".
Section nine ...	Paragraphs (ii) and (iii) of the proviso to subsection (3) and in paragraph (iv) of that proviso the words "or from the Herring Marketing Fund" shall cease to have effect; subsections (5) and (8) shall cease to have effect; in subsection (9) for the words "the said accounts prepared under the last two foregoing subsections" there shall be substituted the words "the said account prepared under subsection (7) of this section" and for the words "the accounts" there shall be substituted the words "the account"; and in subsection (10) the words "and the Herring Marketing Fund" and the word "respectively" shall cease to have effect.
Section ten ...	In subsection (1) for the words "the Herring Marketing Fund" there shall be substituted the words "moneys advanced to the Board under section four of the Herring Industry Act, 1944", and at the end of the said subsection there shall be added the words "The audit of the Board's accounts as aforesaid shall be carried out in accordance with such directions as may be given by the Ministers"; in subsection (2) for the word "accounts" there shall be substituted the word "account", and at the end of the said subsection there shall be added the words "and the report and account mentioned in subsection (6) of section four of the Herring Industry Act, 1944"; and in subsection (3) for the words "The London Association of Certified Accountants, Limited; The Corporation of Accountants Limited" there shall be substituted the words "The Association of Certified and Corporate Accountants, Limited".

Amendment of the Herring Industry Act, 1938.

<i>Section amended</i>	<i>Amendment</i>
Section five ...	In subsection (1) the words "and from the Herring Marketing Fund" shall cease to have effect.

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